

PETITION TO EXPUNGE; HUMAN TRAFFICKING VICTIM
Fla. R. Crim. P. 3.9895(a) - composed codified-text instrument
Assigned component identity: FL-RULE-3.989-PETITION

IN THE COURT
OF THE JUDICIAL CIRCUIT
IN AND FOR COUNTY, FLORIDA

Case No.: Division:

IN RE:
Petitioner.

PETITION TO EXPUNGE; HUMAN TRAFFICKING VICTIM

Petitioner full legal name: Maria-Alejandra O'Shaughnessy-Whitfield
Petitioner date of birth: 1971-12-31
Petitioner mailing address: 1188 Long Coastal Crossing Road, Apartment 14B, Key West, FL 33040-2214
Petitioner telephone: (305) 555-0199 ext. 4417
Petitioner email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

The Petitioner invokes only the human-trafficking-victim expunction pathway under section 943.0583, Florida Statutes. EXPUNCTION, not sealing, is the route-determined relief requested.

1. VENUE AND JURISDICTION. The arrest occurred in the Florida judicial circuit and county written below, and this Court has jurisdiction over the class of each offense identified in this petition.

Court name:
Judicial circuit: County of arrest:
Case number: Court division:

2. RECORDS REQUESTED FOR EXPUNCTION. Complete every line for the record requested. If more than one eligible case is included in the single petition allowed by section 943.0583, attach a complete duplicate of this block for each additional case; never leave a partly completed block.

Arrest date:
Arresting agency:
Charges and statute sections:

.....
.....
Disposition of each charge and disposition date:
.....
.....

3. HUMAN-TRAFFICKING CONNECTION. Petitioner states that Petitioner was a victim of human trafficking as that term is used for this pathway and that the listed offense or offenses were committed or reported while Petitioner was a victim and as part of the trafficking scheme or at the direction of a trafficker.

Trafficking connection statement (use only the facts needed; graphic detail is not requested):

.....
.....
.....

4. EXCLUDED OFFENSES. This route does not extend to an offense excluded by section 943.0583. The filing instructions require a record-based check before filing and a legal handoff if the classification is uncertain.

5. SUPPORTING PROOF. Official documentation of victim status is not categorically required. List what is actually attached; write NONE if none is attached.

Official documentation supporting victim status, or NONE:

Other supporting evidence list:

WHEREFORE, Petitioner asks the Court to expunge the criminal-history records identified in this petition under section 943.0583, Florida Statutes, and to direct the legally required handling of the expunction order.

Petitioner signature:

Date of petitioner signature:

Printed name: Maria-Alejandra O'Shaughnessy-Whitfield

Mailing address: 1188 Long Coastal Crossing Road, Apartment 14B, Key West, FL 33040-2214

Telephone: (305) 555-0199 ext. 4417 Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-pathway:FL:fl-trafficking:human-trafficking-victim-expunction-943-0583

SWORN STATEMENT IN SUPPORT OF PETITION; HUMAN TRAFFICKING VICTIM

Fla. R. Crim. P. 3.9895(b) - composed codified-text instrument

Assigned component identity: FL-RULE-3.9895-SWORN-STATEMENT

IN THE COURT

OF THE JUDICIAL CIRCUIT

IN AND FOR COUNTY, FLORIDA

Case No.: Division:

IN RE:

Petitioner.

SWORN STATEMENT IN SUPPORT OF PETITION; HUMAN TRAFFICKING VICTIM

I, Maria-Alejandra O'Shaughnessy-Whitfield, date of birth 1971-12-31, mailing address 1188 Long Coastal Crossing Road, Apartment 14B, Key West, FL 33040-2214, am the Petitioner in the above-styled cause and swear or affirm as follows:

1. I have read the petition and understand that I am requesting expunction under section 943.0583, Florida Statutes, on the human-trafficking-victim pathway.

2. I was a victim of human trafficking, and the records requested concern one or more offenses committed or reported while I was a victim and as part of the trafficking scheme or at the direction of a trafficker.

Court name, judicial circuit, county, case number, and division:

.....

.....

Records requested for expunction (arrests, charges, statutes, and dispositions):

.....

.....

.....

Sworn trafficking connection statement (truthful and concise; graphic detail is not requested):

.....

.....

.....

Sworn official-documentation statement (identify what is attached, or state that none is attached):

.....

.....

3. The statements I make here are true and correct to the best of my knowledge. I understand this statement is made under oath and that I must not sign it until a notary public or other person authorized to administer an oath is present.

Petitioner signature on sworn statement:

Date sworn before notary:

Sworn to and subscribed before me on the date written above.

Notary public signature:

Notary public printed commissioned name:

Personally known or identification produced:

Type of identification produced:

Notary commission expiration:

Route: obligation:track-pathway:FL:fl-trafficking:human-trafficking-victim-expunction-943-0583

ORDER TO EXPUNGE; HUMAN TRAFFICKING VICTIM
Fla. R. Crim. P. 3.9895(c) - composed codified-text instrument
Assigned component identity: FL-RULE-3.989-ORDER

IN THE COURT
OF THE JUDICIAL CIRCUIT
IN AND FOR COUNTY, FLORIDA

Case No.: Division:

IN RE:
Petitioner.

PROPOSED ORDER TO EXPUNGE; HUMAN TRAFFICKING VICTIM

UNEXECUTED PROPOSED ORDER. No finding below has been made and no relief has been granted unless and until the judge signs and the clerk enters this order.

This cause came before the Court on the petition of Maria-Alejandra O'Shaughnessy-Whitfield for human-trafficking-victim expunction under section 943.0583, Florida Statutes.

Court name, judicial circuit, county, case number, and division:

.....
.....

COURT FINDINGS (COURT ONLY):

.....
.....
.....

IT IS ORDERED AND ADJUDGED that the criminal-history records identified by the Court below are EXPUNGED under section 943.0583, Florida Statutes.

Records ordered expunged by the court:

.....
.....
.....

Date of order:

Judge signature:

Judge printed name:

CLERK USE AFTER ENTRY:

Clerk certification:

Clerk distribution date:

The filing participant leaves every finding, the records ordered expunged, the date of the order, judicial signature, judicial printed name, clerk certification, and clerk distribution date blank.

Route: obligation:track-pathway:FL:fl-trafficking:human-trafficking-victim-expunction-943-0583

CERTIFICATE OF SERVICE

Custom component required by the authoritative fl-trafficking-set manifest

Assigned component identity: fl-trafficking-certificate-of-service-4

IN THE COURT
OF THE JUDICIAL CIRCUIT
IN AND FOR COUNTY, FLORIDA

Case No.: Division:

IN RE:

Petitioner.

CERTIFICATE OF SERVICE

Petitioner full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

SERVICE-LAW LIMIT. The committed review does not state a statewide service recipient, destination, method, or timing rule for this petition. Ask the filing clerk what copies or local service steps are required. Use this certificate only if the clerk directs service or copy delivery.

DO NOT COMPLETE, SIGN, OR DATE THIS CERTIFICATE BEFORE DELIVERY. After any required service or copy delivery actually occurs, record only the true post-delivery facts below.

Actual date of service or delivery:

Actual recipient names and roles:

.....
.....

Actual service or delivery addresses:

.....
.....

Actual method of service or delivery:

I certify only that the service or copy delivery described above actually occurred. This blank certificate does not establish that service was required or that any unnamed person was served.

Signature certifying completed service or delivery:

Date certificate signed after service or delivery:

Route: obligation:track-pathway:FL:fl-trafficking:human-trafficking-victim-expunction-943-0583

FLORIDA HUMAN-TRAFFICKING-VICTIM EXPUNCTION INSTRUCTIONS

Process-guidance component required by the authoritative fl-trafficking-set manifest

Assigned component identity: fl-trafficking-instructions-5

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Florida human-trafficking-victim expunction packet

This packet is built only for

obligation:track-pathway:FL:fl-trafficking:human-trafficking-victim-expunction-943-0583. It requests expunction under section 943.0583, Florida Statutes; it does not select ordinary sealing, ordinary expunction, or an FDLE certificate route.

What is included

Component | Purpose

FL-RULE-3.989-PETITION | Petition to Expunge; Human Trafficking Victim, composed with the current Rule 3.9895(a) caption

FL-RULE-3.9895-SWORN-STATEMENT | Sworn Statement in Support of Petition; Human Trafficking Victim, Rule 3.9895(b)

FL-RULE-3.989-ORDER | Unexecuted proposed Order to Expunge; Human Trafficking Victim, composed with the current Rule 3.9895(c) caption

fl-trafficking-certificate-of-service-4 | Blank certificate for recording actual service or copy-delivery facts only after delivery, if the filing clerk requires that step

fl-trafficking-instructions-5 | Participant and filing instructions bound into the assembled packet as process guidance

Trauma-informed completion rule

You do not need to give graphic details. Use only enough truthful information to explain that the record arose while you were a trafficking victim and as part of the trafficking scheme or at a trafficker's direction. The packet does not invent, interpret, or strengthen your account.

Required before filing

Fill every applicable dotted line from your court and arrest records. For multiple eligible cases, use one fully completed record block per case; never leave a partly completed block that could be read as complete.

The certificate rows in the table are different: do not predict them or fill them before petition filing. Supply them only after any clerk-directed service or copy delivery actually occurs and before submitting that completed certificate.

Document | Blank on the document | What you must supply

FL-RULE-3.989-PETITION | Court name | the full name of the court that has jurisdiction over the offense class

FL-RULE-3.989-PETITION | Judicial circuit | the number of the Florida judicial circuit where the arrest occurred

FL-RULE-3.989-PETITION | County of arrest | the Florida county where the arrest occurred

FL-RULE-3.989-PETITION | Case number | the exact case number from the court record

FL-RULE-3.989-PETITION | Court division | the division shown on the court record, if one is assigned

FL-RULE-3.989-PETITION | Arrest date | the arrest date from the record

FL-RULE-3.989-PETITION | Arresting agency | the arresting agency's exact name from the record

FL-RULE-3.989-PETITION | Charges and statute sections | every charge and statute section whose record is requested for expunction

FL-RULE-3.989-PETITION | Disposition of each charge | the exact disposition and disposition date for every listed charge

FL-RULE-3.989-PETITION | Trafficking connection statement | a concise statement, in the petitioner's own words, explaining that the offense was committed or reported while the petitioner was a trafficking victim and as part of the trafficking scheme or at a trafficker's direction

FL-RULE-3.989-PETITION | Official documentation supporting victim status, or NONE | a list of official documentation attached, or the word NONE if proceeding without it

FL-RULE-3.989-PETITION | Other supporting evidence list | a list of the other non-graphic evidence attached to support the petition

FL-RULE-3.9895-SWORN-STATEMENT | Court name | the same full court name used on the petition

FL-RULE-3.9895-SWORN-STATEMENT | Judicial circuit | the same Florida judicial circuit used on the petition

FL-RULE-3.9895-SWORN-STATEMENT | County of arrest | the same county used on the petition

FL-RULE-3.9895-SWORN-STATEMENT | Case number | the same exact case number used on the petition

FL-RULE-3.9895-SWORN-STATEMENT | Court division | the same division used on the petition, if one is assigned

FL-RULE-3.9895-SWORN-STATEMENT | Records requested for expunction | the same arrests, charges, statutes, and dispositions identified in the petition

FL-RULE-3.9895-SWORN-STATEMENT | Sworn trafficking connection statement | a truthful, concise sworn statement that the listed offenses were committed or reported while the petitioner was a human-trafficking victim and as part of the scheme or at a trafficker's direction

FL-RULE-3.9895-SWORN-STATEMENT | Sworn official-documentation statement | which official documentation is attached, or that none is attached

FL-RULE-3.989-ORDER | Court name | the same full court name used on the petition

FL-RULE-3.989-ORDER | Judicial circuit | the same Florida judicial circuit used on the petition

FL-RULE-3.989-ORDER | County of arrest | the same county used on the petition

FL-RULE-3.989-ORDER | Case number | the same exact case number used on the petition

FL-RULE-3.989-ORDER | Court division | the same division used on the petition, if one is assigned

fl-trafficking-certificate-of-service-4 | Court name | the same full court name used on the petition

fl-trafficking-certificate-of-service-4 | Judicial circuit | the same Florida judicial circuit used on the petition

fl-trafficking-certificate-of-service-4 | County of arrest | the same county used on the petition

fl-trafficking-certificate-of-service-4 | Case number | the same exact case number used on the petition

fl-trafficking-certificate-of-service-4 | Court division | the same division used on the petition, if one is assigned

fl-trafficking-certificate-of-service-4 | Actual date of service or delivery | the true date on which service or copy delivery was completed, entered only after it happened

fl-trafficking-certificate-of-service-4 | Actual recipient names and roles | every person or office actually served or given a copy, using the clerk-confirmed requirement

fl-trafficking-certificate-of-service-4 | Actual service or delivery addresses | the address used for each actual recipient

fl-trafficking-certificate-of-service-4 | Actual method of service or delivery | the method actually used after following the filing clerk's current instructions

Also check from the record that no requested offense is excluded by section 943.0583. If the offense classification is uncertain, stop and obtain legal help rather than guessing.

Official documentation tending to show victim status can affect the proof path. Attach only genuine documentation you actually have. If you have none, say so truthfully and review the higher proof burden described in the filing instructions.

Protected fields left blank

- Sign and date the petition only after every required fact is complete and accurate.
- Sign the sworn statement only before a notary public or other person authorized to administer an oath. The notary completes the oath date, signature, identification, printed name, and commission fields.
- Do not fill any findings, scope of relief, order date, judge signature, judge printed name, clerk certification, or clerk distribution field on the proposed order.
- The committed review does not state a statewide service recipient, destination, method, or timing rule. Ask the filing clerk what copies or local service steps are required. Use the certificate only if directed, enter only facts from delivery that actually occurred, and do not complete, sign, or date it before delivery.

Stop and get help

Stop for disputed victim status, prosecutor opposition, a contested or evidentiary hearing, individualized advocacy, uncertainty whether an offense is excluded, or any immigration issue. This build does not resolve those questions.

This packet has not been filed, served, independently verified, approved for live use, or released for commercial fulfillment.

Filing instructions - Florida section 943.0583

1. Complete the petition and sworn statement from the underlying court and arrest records. Keep each case block complete.
2. Gather official documentation of victim status if you have it, plus other non-graphic supporting evidence. Official documentation can create the statutory presumption; it is not categorically required. The committed route record states that proceeding without it requires a clear-and-convincing-evidence showing.
3. Have the sworn statement signed before a notary public or other person authorized to administer an oath. Do not predate it.
4. Leave the proposed order's findings, relief description, dates, judge fields, and clerk fields blank.
5. File in any court in the Florida circuit where the arrest occurred that has jurisdiction over the class of the offense or offenses requested for expunction.
6. The committed pathway record states that the clerk may not charge filing, service, or copy fees for this section 943.0583 petition and treats multiple eligible cases as a single petition. Confirm the clerk's current intake procedure and any local cover-sheet or copy requirement before filing; this packet does not create a local-circuit form.
7. The committed legal-design record does not establish a separate statewide service recipient, destination, method, or timing rule for this petition. Ask the filing clerk what copies or local service steps are required. Use the included certificate only if the clerk directs service or copy delivery; after delivery, enter the actual date, recipients, addresses, and method, then sign and date the certificate. Never complete, sign, or date it before delivery.
8. Keep a complete stamped copy. If relief is granted, obtain a certified copy of the entered order and follow up on record-system implementation.

A filing location or local procedure question is answered by the clerk of the court in the circuit of arrest. A disputed legal or evidentiary issue requires counsel.

Route: obligation:track-pathway:FL:fl-trafficking:human-trafficking-victim-expunction-943-0583

Route: obligation:track-pathway:FL:fl-trafficking:human-trafficking-victim-expunction-943-0583